JOUBERT CRUSHERS AND TRANSPORT (Pvt) Ltd
and
JOUBERT MINING (Pvt) Ltd
versus
ANDRIES HENDRICK JOUBERT (SENIOR)
and
MINING COMMISSIONER N.O (MANICALAND PROVINCE)
and
MINISTER OF MINES AND MINING DEVELOPMENT N.O

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 16 January & 9 February 2026

Urgent Chamber Application

K G Muraicho, for the 1st and 2nd Applicant
G R J Sithole instructed by Miss *V Maunga*, for the 1st Respondent

TAKUVA J: Applicants filed an urgent chamber application styled as

"(i) For leave to re-open the proceedings

(ii) For leave to file a supplementary affidavit and adduce further evidence and

(iii) For stay of the impending judgement."

It was contented that the application was filed in terms of s 13 of the High Court Act [*Chapter 7.06*] as read with r 7 and 36 of the High Court Rules.

BACKGROUND FACTS

The applicants and first respondent are engaged in seemingly endless legal battles in this court.

In November 2025, the parties as cited herein appeared before me in case No HCH 2953/25. The applicant sought the following relief.

"TERMS OF THE FINAL ORDER SOUGHT

That you show cause to this court why a final order should not be made in the following terms;

1. The applicants application be and is hereby granted
2. It be and is hereby declared that the quarry mine situated at subdivision A subdivision D of Dora Farm is owned by and belongs to the first applicant
3. It is and is hereby declared first respondent's alleged sheer luck mine is not situated on land belonging to first applicant at subdivision A of subdivision D of Dora Farm
4. Consequently, the first respondent, his agents employees or proxies or anyone claiming rights through him be and are hereby ordered to vacate from first applicant's land and quarry factory situated in subdivision A of subdivision D of Dora Farm also known as Jourbet Crushers quarry mine
5. …
6. …
7. …
8. …
9. …

INTERIM RELIEF GRANTED

Pending determination of this matter, the applicant is granted the following relief;

1. The first respondent, their agents, employees or proxies or anyone claiming rights through them be and is hereby interdicted from accessing the first applicants quarry mine located at the subdivision A of subdivision D of Dora Farm commonly known as Joubert Crushers quarry factory and from interfering with first applicant, her agents, employees or proxies' exclusive control and access of the quarry factory located at subdivision A of subdivision D of Dora Farm commonly known as Joubert Crushers quarry factory …
2. In the event of non- compliance with the provisional order, the Sheriff of the High Court or his deputy be and is hereby directed to restore peaceful and undisturbed possession of the premises to the applicants and any and every member of the ZRP, shall arrest and detain any and all individuals in breach of this order until they are duly brought to court on contempt of court or other suitable charges as the case maybe;
3. The second and third respondents be and are hereby jointly and severally ordered to produce a report showing the exact location of first respondent's sheerluck Mine and the first applicant's subdivision A of subdivision A of Dora Farm and file it with this court within ten days of this order…"

I must point out that HCH 2953/25 is more than one thousand two hundred pages long. However, a perusal of the key and crucial documents reveals that the dispute centers around ownership and location of SHEERLUCK MINE Reg No 22492BM. Vis-a vis first applicant's Quarry Mine also known as Jourbet Crushers. In short applicant seeks an interdict against first respondent together with an eviction of first respondent from "Joubert Crushers."

The application was opposed by the first respondent who raised several points *in limine* namely; (i) Prescription, (ii) Failure to exhaust domestic remedies.

Parties argued these preliminary points only and judgment was reserved. While the court was in the process of preparing judgment applicants filed HCH 3/26 seeking leave to reopen the proceedings so that they could file a supplementary affidavit and stay of the impending judgment.

The basis of this application is that material documents which were not reasonably available surfaced. The documents are (a) A duplicate Certificate of Registration for Sheerluck mine No 22498BM.

(b) An affidavit from a Mr B S Marisa who is an approved prospector.

It was argued that this evidence goes to the "heart of the matter" in that it shows the "locus of first respondent's mining location" and the "nature" of the authorised mineral activity.

The application under HCH 3/26 was opposed by the first respondent on the ground that the documents do not answer the questions raised in the preliminary points.

The Law

This court has inherent power to regulate its own processes as provided for in s 171 of the Constitution of Zimbabwe. See also *Econet Wireless Zimbabwe (Pvt) Ltd* v *Trustco Mobile (Pty) Ltd* SC 05/13 where it was held that;

> "A superior court of record enjoys an inherent jurisdiction to control judgments including staying their operation where related interlocutory processes may render them academic or cause irreparable prejudice."

In *Mapedzamombe* v *Bungu* 1996(1) ZLR 257 (S) at 260 G-261A, the court held that;

> "A court retains a residual discretion, even after argument but before judgment, to re-open the proceedings where the interests of justice so demand. To refuse to do so merely because argument has been concluded would be to sacrifice substance on the altar of form."
> It is now trite that, prior to the handing down of judgment a litigant may, on good cause shown, place additional material before the court."
> In *casu*, I am of the view that the materiality of the evidence has not been satisfied in that those documents are incapable of resolving the preliminary points in dispute. Even the applicants concede this point in the following paragraph;
> "9.1 The genesis of the dispute before the matter under case No HCH 2953/25 concerns the ownership and boundaries of mining rights of first respondent which are pegged and registered in Sheerluck Farm (for the Mining of Bentomine) and alleged mining rights clamed by the firs respondent on the Sudivision A of subdivision D of Dora Farm, the land owned by the first applicant.
> 9.2 Therefore, the central dispute is geographical area-whether mining location of Sheerluck mine claim No 22492BM overlaps first applicant's quarry mine sites situated at subdivision A of subdivision D of DORA FARM and whether first respondent ever possessed lawful rights to mine quarry stone there."

This submission clearly demonstrates that the evidence that leave is being sought to lead, relates to the merits of the matter and not to the preliminary points that were argued. That being the case, the evidence sought to be produced does not answer the preliminary points. Put differently, that evidence does not relate to the material issues before the court namely, whether or not the claim is statute barred and whether or not there exists material disputes of fact.

It is common cause that the merits of case have not yet been argued. In that respect the applicants have put the cart before the horse. In my view, there is no basis for an order of costs at a higher scale.

In the result it is ordered as follows; The application be and is hereby dismissed with costs.

TAKUVA J:……..

Maunga Maanda and Associates, first respondent legal practitioners